

Gomti Devi v. State of U.P. (Secretary, Vidyut)

High Court of Judicature at Allahabad · Division Bench · 23 January 2018 · Writ-C No. 2998 of 2018 · **Writ disposed; representation treated as clause 6.5 application.**

HEADNOTE

A pending representation for correction of bills issued despite alleged transformer failure and non-supply, and for replacement of the transformer, is to be treated as an application under clause 6.5 of the Uttar Pradesh Electricity Supply Code, 2005, for personal enquiry and order by the Executive Engineer.

FACTUAL SUMMARY

Gomti Devi alleged that the transformer supplying the petitioner's tube-well had broken down, after which no electricity was supplied, yet bills continued to arrive. A representation seeking correction of those bills and replacement of the transformer remained pending. The writ was brought on that limited showing; the High Court did not enquire into the alleged breakdown or the correctness of the bills.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-objection-to-executive-engineer-under-6.5

HOLDING

Where a consumer's representation for correction of bills issued after alleged transformer failure and non-supply, and for replacement of the transformer, remains pending, the writ is disposed of by treating that representation as an application under clause 6.5 of the Uttar Pradesh Electricity Supply Code, 2005, and directing the Executive Engineer to enquire, visit the spot personally, and pass an appropriate order within four weeks of production of a certified copy. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE TRANSFORMER HAD BROKEN DOWN, WHETHER THE BILLS REQUIRED CORRECTION, AND WHETHER THE TRANSFORMER WAS TO BE REPLACED

Left to the Executive Engineer on a clause 6.5 enquiry with a personal site visit. ¶ 1